

Step-by-step guide for documenting, filing complaints, and building a case — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

SECURE DIGITAL EVIDENCE

- ☐ **Secure Digital Evidence:** Export and screenshot all relevant company emails before access is revoked, including sent messages, performance discussions, and termination-related communications.
- ☐ **Secure Digital Evidence:** Screenshot every relevant conversation from Slack, Microsoft Teams, or Google Chat that shows your performance, complaints filed, or discussions about termination decisions.
- ☐ **Secure Digital Evidence:** Use your phone camera to photograph your screen as a backup, since physical photographs are harder for employers to claim were digitally altered or manipulated.
- ☐ **Secure Digital Evidence:** Preserve metadata by capturing document properties including author, creation date, and edit history to reveal inconsistencies in your employer's stated timeline.

COMPILE EMPLOYMENT RECORDS

- ☐ **Compile Employment Records:** Export all performance reviews, goal sheets, and feedback from Workday, BambooHR, or Lattice before your system access is completely revoked.
- ☐ **Compile Employment Records:** Screenshot all internal HR complaints you filed, including the original complaint, every response received, and any follow-up messages marked as resolved.
- ☐ **Compile Employment Records:** Photograph your termination letter and capture its metadata properties, since a letter created on your termination date tells a very different story than one modified in advance.
- ☐ **Compile Employment Records:** Document any evidence deletion attempts by screenshotting access warnings, disappearing messages, or bounced emails that indicate your employer is destroying records.

FILE ADMINISTRATIVE COMPLAINTS

- ☐ **File Administrative Complaints:** File your complaint with the EEOC or state fair employment agency within the required timeframe, since statutes of limitation are strict and missing the deadline bars your entire case.
 - ☐ **File Administrative Complaints:** Request a Right to Sue letter from the EEOC if you need to pursue a civil claim, as this step is typically required before you can file a lawsuit in federal court.
 - ☐ **File Administrative Complaints:** Submit your complaint to both the EEOC and your state agency if your state has separate jurisdiction, because dual filing strengthens your case and expands potential remedies.
 - ☐ **File Administrative Complaints:** Keep copies of every complaint you file and document the date, confirmation number, and method of delivery, since proof of timely filing is essential if your case is challenged.
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